

20230930-DK-BUTTERFLY-1, INC.	X	
	:	
	:	FMC Docket No. 25-01
	:	
Complainant,	:	
	:	
vs.	:	
	:	
BAL CONTAINER LINE CO., LIMITED,	:	
	:	
	:	
	:	
Respondent:	X	

RESPONDENT'S OPPOSITION TO COMPLAINANT 20230930-DK-BUTTERFLY-1, INC.'S MOTION TO COMPEL FURTHER CORPORATE TESTIMONY

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I. INTRODUCTION AND BACKGROUND

The testimony taken during the depositions of this case established that, in 2021 and 2022, (1) BBY did not have sufficient warehousing space for containers on the U.S West Coast (and so many sat at the terminals and many were sent to other states once removed from the terminals), (2) there was no relationship, at all, between BAL and BBY, (3) the terminals removed days from demurrage invoices for unavailable days, (4) BAL removed days from detention bills where evidence of closed days was presented, and that (5) BBY's calculation of the demurrage in this case is wrong by almost \$2 million. This is just some of the testimony gathered, which BBY surely knows dooms its case. Therefore, BBY now appears desperate to collect further testimony, in the hopes of reviving its case. Such a request is belated, contradicts the Fourth Revised Scheduling Order, and should be denied.

Complainant 20230930-DK-BUTTERFLY-1, INC.'s ("BBY") Motion to Compel Further Corporate Testimony ("Motion") is procedurally inappropriate and substantively without merit. BBY's Motion was filed **four days after the deadline for completion of fact witness depositions and without a request to modify the current Scheduling Order**. There is no reason why BBY could not have filed its motion before the close of fact witness discovery. BBY's motion is untimely, the time for fact witness depositions has passed, and BBY's motion should be denied on that basis. Moreover, BBY has known about the current Scheduling Order in this proceeding for many months (stipulated on October 7, 2025). Importantly, one of the witnesses it now seeks to depose, via its motion, was a witness BAL offered for testimony, but BBY *declined* to proceed with his deposition. BBY appears to have failed to adequately prepare for fact witness depositions in this case, and now brings its Motion in an untimely attempt to gain additional testimony from BAL's corporate representatives.

BBBY took extensive depositions: (1) the personal and corporate depositions of Parker Zhu (BAL's person most knowledgeable regarding the demurrage fees at issue in this case), (2) the personal deposition of Mr. Liu (BAL's US representative during the time period at issue), (3) the personal and corporate deposition of Cathy Sun (BAL's person most knowledgeable regarding the detention fees at issue in this case), and (4) the personal deposition of Terry Ye (senior manager of BAL during the time at issue in this case). On October 7, 2025, the parties agreed to close fact witness depositions on December 15, 2025 (the third amendment to the scheduling order), and so BBBY has no excuse for not obtaining its desired testimony during that more-than-two-month timeframe. A timeline of relevant events is as follows:

Date	Event
October 7, 2025	BBBY and BAL file the Joint Motion to Extend Briefing Schedule (Docket Entry No. 48) requesting a Fourth Revised Scheduling Order. The Parties agreed, and stipulated amongst themselves, that pending any changes by the FMC upon reopening from the government shutdown, the deadline for fact witness deposition completion would be December 15, 2025.
October 16, 2025	BAL provides BBBY with a letter noting the fact witness deadline of December 15, 2025, and informing BBBY that BAL's witnesses must travel to Hong Kong for their depositions because of prohibitions on foreign depositions in mainland China. Declaration of Bryce Cullinane, ("Cullinane Decl."), ¶ 3, Ex. A.
November 13, 2025	BAL first requests BBBY to provide proposed topics for BAL's corporate deposition. This was a proactive step by BAL, to ensure that it had enough time to prepare its corporate representatives for their corporate depositions. Cullinane Decl., ¶ 4, Ex. B.
November 14, 2025	The Presiding Officer enters the Fourth Revised Scheduling Order (Docket Entry No. 49). The deadline for completion of fact witness depositions remained the date the Parties stipulated to, December 15, 2025.
November 26, 2025	BAL, for the second time, requests that BBBY provide proposed topics for BAL's corporate deposition. Again, BAL wanted to ensure that it had sufficient time to prepare its corporate designees for their depositions. Cullinane Decl., ¶ 5, Ex. C.
	BBBY finally provides BAL with proposed topics for BAL's corporate deposition(s). BBBY does so just 19 days before the cutoff the Parties agreed to for fact witness depositions, and just 12 days before the first BAL witness deposition was scheduled to occur. Cullinane Decl. ¶ 5.
November 30, 2025	Counsel for BAL travels to Shanghai, to meet with BAL and prepare BAL for upcoming depositions by BBBY (which were scheduled to occur in Hong Kong). Cullinane Decl., ¶

	6.
December 3, 2025	After meeting with BAL and its witnesses to discuss those topics BBBY proposed for the corporate deposition(s) of BAL, counsel for BAL provides BAL's responses and objections to BBBY's proposed corporate topics, <u>per the requested response date by BBBY</u> . BAL objected where appropriate and indicated where meet and confer discussions would be necessary. BAL designated Terry Ye to testify to BAL's practices and policies regarding detention and demurrage, limited to 2021 and 2022, and the ports of destination: Los Angeles and Long Beach. Cullinane Decl., ¶ 7.
December 4, 2025	BAL amends its corporate representatives for Topic 3 to make Mr. Terry Ye available to testify to BAL's detention and demurrage <i>policies</i> , Mr. Parker Zhu for BAL's demurrage <i>practices</i> , and Ms. Cathy Sun for BAL's detention <i>practices</i> —all in the context of the ports of destination and during the relevant time period. Cullinane Decl., ¶ 8, Ex. D. BAL provides availability to meet and confer on the evening of December 9 or December 10 HKT regarding the scope of BBBY's proposed topics. Cullinane Decl., ¶ 8, Ex. E.
December 6, 2025	BAL provides additional availability to meet and confer the morning of December 8, HKT. Due to unforeseen circumstances, BAL was unable to attend the meet and confer. Cullinane Decl., ¶ 9, Ex. F.
December 8, 2025	BAL requests BBBY provide an alternative time to meet and confer. BBBY's only proposed availability was December 10, from midnight to 2:00 a.m. HKT. BAL suggested that BBBY provide a written response instead. Cullinane Decl., ¶ 10, Ex. G. The Parties proceed with Cathy Sun's personal and corporate deposition. Cullinane Decl. ¶ 10
December 9, 2025	Just <u>28 minutes</u> before the start of Mr. Terry Ye's personal deposition (which BBBY agreed would immediately proceed Mr. Ye's corporate deposition), BBBY provides BAL with its written response regarding the scope of BAL's corporate deposition topics. <u>BBBY unilaterally cancelled the corporate deposition of Mr. Ye, despite Mr. Ye travelling to Hong Kong for the express purpose of providing testimony in this proceeding, in both his personal and corporate capacity.</u> Cullinane Decl., ¶ 11, Ex. H. BAL attempts to reason with BBBY via email, and explain that BBBY would be waiving its opportunity to receive relevant testimony commensurate with Topic 3, by cancelling Mr. Ye's corporate deposition at the last moment. Due to the short period of time within which Mr. Ye would be available in Hong Kong, BAL invited BBBY to meet and confer promptly, following the personal deposition of Mr. Ye, and/or during a time period the Parties had already allotted for Mr. Ye's corporate deposition. BAL also proposed using the break between the personal and corporate depositions of Mr. Ye, to meet and confer regarding the dispute regarding the corporate topics. Oddly, BBBY refused all three offers to meet and confer. Cullinane Decl., ¶ 12, Ex. I.
December 10, 2025	The Parties engage in a meet and confer telephone call. BBBY then provides revised proposed topics by email, regarding Topics 3, 4-6, and 8. Regarding Topic 3, BAL indicated that BBBY had waived its right to further testimony—BAL had offered to meet and confer during the time scheduled for Mr. Ye's corporate deposition, or during the break before that deposition, and BBBY refused. There was no reason that Mr. Ye's corporate deposition could not have proceeded on the topic for which he was designated upon and was ready to testify regarding. Mr. Ye had already returned to

	mainland China, and was not available to return on the date BBY requested. Regarding Topics 4-6, BAL offered to provide BBY a declaration stating BAL was not aware of which containers belonged to BBY prior to BBY initiating this proceeding. BAL further explained its objections to Topic 8 in detail. Cullinane Decl., ¶ 13, Ex. J.
December 11, 2025	The Parties proceed with the individual and corporate deposition of Parker Zhu. Cullinane Decl., ¶ 14.
	BBY had four days remaining in the schedule for fact witness depositions to file its current motion to compel, but did not do so. BBY did not even request an extension from BAL, to move to compel within the fact witness deposition window. Cullinane Decl., ¶ 14.

II.LEGAL STANDARD

The Commission’s rules allow for organizational depositions, limited to “information known or reasonably available to the organization.” 46 C.F.R. § 502.143(b)(6). “In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed, to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. “Federal Rule of Civil Procedure 30(b)(6) governs deposition notices directed to organizations. In the deposition notice, the discovering party must “describe with reasonable particularity the matters for examination.” Fed. R. Civ. P. 30(b)(6). This requirement aims to enable the designating party “to identify the person who is best situated to answer questions about the matter, or to make sure that the person selected to testify is able to respond regarding that matter.” 8A Charles Alan Wright & Arthur R. Miller, *Federal Practice and Procedure*, § 2103 (3d ed. 2023). In light of this goal, the discovering party must “take care to designate, with painstaking specificity, the particular subject areas that are intended to be questioned, and that are relevant to the issues in dispute.” *Pauls v. Prudential Ins. Co. of Am.*, 2016 WL 6397564, at *4 (N.D. Tex. Oct. 28, 2016) (emphasis added). “The court may limit a Rule 30(b)(6) deposition notice to the extent it requests the organization to designate an agent to testify on topics of information that are overly broad, vague, or ambiguous.” *Sartin v. Exxon Mobil Corp.*,

III. LEGAL ARGUMENT IN OPPOSITION TO MOTION TO COMPEL FURTHER CORPORATE TESTIMONY

A. BBBY HAS OBTAINED (AND HAD THE OPPORTUNITY TO OBTAIN) MORE THAN SUFFICIENT TESTIMONY REGARDING DETENTION AND DEMURRAGE (TOPIC 3)

BBBY is not entitled to further testimony regarding Topic 3. First, the topic is vague, duplicative, and overbroad as drafted. This litigation centers around detention and demurrage charges allegedly imposed by BAL, on the United States West Coast, and during the years 2021 and 2022. Yet, Topic 3, in the form BBBY moves to compel testimony, contains no temporal or geographic limitations. Courts repeatedly deem corporate deposition topics overbroad for their failure to include such limitations. *E.g., Green v. Platinum Restaurants Mid-Am., LLC*, No. 3:14-CV-439-GNS, 2017 WL 11682937, at *16 (rejecting proposed topic which lacked “geographic, temporal or subject matter limitations”). No departure is warranted here.

Further, Topic 3 contains a laundry list of subparts with respect to detention and demurrage—*regulations, practices, policies, procedures, protocols, strategies, or conditions*—for which BBBY has made no meaningful effort to distinguish. As BAL has maintained throughout its discussions with BBBY, these subparts are vague and overlap to the point of incomprehension. *See, e.g., Cullinane Decl., Ex. I., p. 6, ¶ 3.* Meet and confer efforts with BBBY regarding this issue proved fruitless, as BBBY continued to insist upon duplicative subparts regarding the detention and demurrage testimony it sought. *Compare Morris Decl., Ex. A, p. 5, ¶ 3 with Cullinane Decl., Ex. H, p. 1, ¶ 3 and Cullinane Decl., Ex. J, p. 6, ¶ 3.* BBBY glosses over this issue, providing a conclusory assertion of distinction and blaming BAL for withholding the vague penumbra of testimony sought. Yet BAL would be prejudiced if forced to attempt to

educate its witnesses on such an overarching and far-reaching topic. For example, how BAL would go about preparing a corporate representative to testify on detention and demurrage *procedures* as opposed to *protocols* or *strategies* or *conditions* remains entirely unclear. Caselaw confirms that BAL need not supply a representative to testify where it “cannot identify the outer limits of the areas of inquiry.” *Hartford Fire Ins. Co. v. P&H Cattle Co.*, 2009 WL 2951120, at *10 (D. Kan. Sep. 10, 2009). Such is the case here, and BAL should not be compelled to provide additional testimony.

Moreover, BAL already provided (and offered to provide) more than sufficient testimony commensurate with the scope of Topic 3. BAL provided (and BBY deposed) Ms. Cathy Sun, with respect to BAL’s detention practices on the West Coast in 2021 and 2022 (personal and corporate deposition), and Mr. Parker Zhu, with respect to BAL’s demurrage practices regarding the same (personal and corporate deposition). Cullinane Decl., ¶ 8. BAL further provided BBY the opportunity to obtain testimony from Mr. Terry Ye, as corporate representative, with respect to BAL’s detention and demurrage *policies* on the West Coast in 2021 and 2022. Cullinane Decl., ¶ 8. Together these witnesses’ testimony would have encompassed the entire universe of information reasonably sought by Topic 3: (1) the internal guidelines BAL followed with respect to detention and demurrage, (2) how BAL applied these internal guidelines with respect to detention and demurrage, and (3) how BAL collected detention and demurrage—all during the time period at issue and within the geographic constraints at issue. Yet inexplicably, and **just minutes before the start of Mr. Terry Ye’s personal deposition** (which BBY agreed would immediately precede his corporate deposition), **BBY unilaterally cancelled the corporate deposition of Mr. Ye**. Cullinane Decl., ¶ 11. BBY asserts that BAL then attempted to *push* BBY into a belated meet and confer regarding the scope of Mr. Ye’s corporate testimony. Yet

BBBY is the party who waited until the last minute to notice BAL's corporate deposition (following two *separate* requests for proposed topics by BAL). And BBBY is the party who failed to provide its position regarding the proposed topics until the very morning of Mr. Ye's deposition. It bears repeating that **BBBY has known about the deposition schedule in this case for months, and was well-aware that BAL's witnesses would only be available—in Hong Kong—during the time scheduled for their depositions.** BAL's offer to meet and confer following Mr. Ye's personal deposition was an attempt to reach an agreement so that Mr. Ye's corporate deposition could occur and so that months of planning and preparation would not go to waste. Indeed, Mr. Ye was scheduled to fly back to mainland China the same night, Cullinane Decl., ¶ 12, where any subsequent attempts at deposition would be barred. *Junjiang v. Jling Inc.*, No. 15-CV-4194 (SIL), 2019 WL 1441130, at *11 (E.D.N.Y. Mar. 31, 2019) (stating that Chinese law prohibits all depositions for foreign proceedings). BBBY refused to even discuss the scope of Mr. Ye's testimony until after the time for Mr. Ye's deposition had concluded, and only after Mr. Ye had departed for Shanghai. Cullinane Decl., ¶¶ 12-13. Strangely, BBBY also refused to utilize the Parties' scheduled time to depose Mr. Ye regarding BAL's detention and demurrage policies on the West Coast in 2021 and 2022. Cullinane Decl., ¶ 13. Even if BBBY disagreed with the full scope of Mr. Ye's corporate testimony, this subtopic was embraced by Topic 3 and expressly sought by BBBY in its meet and confer emails on December 9 and December 10. *See* Cullinane Decl. Ex. H, p. 1, ¶ 3; Cullinane Decl., Ex. J, p. 6, ¶ 3. BBBY has provided no explanation for this refusal, but instead brings the Motion seeking *regulations, procedures, protocols, strategies, or conditions* in addition to the policies BAL was willing to provide. The “discovery rules are not a ticket to an unlimited, never-ending exploration of every conceivable matter that captures [another party's] interest.” *Ossola v. Am. Express Co.*, 2015 WL

5158712, at *7 (N.D. Ill. 2015) (citation omitted). Even if “additional discovery” may “provide nominally probative information not yet in the parties' hands,” principles of proportionality, as well as the Federal Rules' “language and spirit,” “prevent parties from expending increasing time and energy” pursuing every conceivable angle of a case. *Armstrong Pump, Inc. v. Hartman*, 2016 WL 7208753, at *3 (W.D.N.Y. 2016).

Indeed, this conduct raises a more fundamental concern about BBY's deposition strategy and attempt now to compel further testimony from BAL. Counsel for BAL is of the opinion that BBY was simply ill-prepared for BAL's corporate depositions,¹ and has chosen to file this Motion in a last-ditch effort to gain additional time and testimony. BBY received a more than sufficient opportunity to obtain testimony responsive to Topic 3. BBY refused to take advantage and thus waived its right to any further testimony. BBY should not be rewarded for its tactics delay, and the request to compel further testimony under Topic 3 should be denied.

B. BBY CANNOT COMPEL TESTIMONY ON TOPICS BAL HAS NO KNOWLEDGE OF (TOPICS 4-6)

BBY next insists that BAL be compelled to provide testimony responsive to Topics 4-6, regarding its “carriage of BBY cargo.” This is improper. First, as BAL has represented to BBY on numerous occasions, prior to BBY's initiation of this proceeding, BAL had no way of ascertaining which containers contained BBY cargo. Declaration of BAL's Fleet Operations

¹ For example, in one deposition, counsel for BBY had to be reminded by counsel for BAL that an important document in the case (a letter from the FMC to BAL) had indeed been produced in the case, many months before the deposition.

Department Manager, Liu Qingzhi, Docket Entry No. 30 (“Liu Declaration”),² ¶ 10. BAL did not have any direct carriage contract or service contract with BBY. Liu Decl., ¶ 2. Moreover, BAL never communicated directly with BBY about its containers or cargo. Liu Decl., ¶¶ 8-9. So, to the extent BBY requests testimony regarding BAL’s “carriage” of BBY cargo, the “flow” of BBY cargo, and BAL’s work with “intermediaries” regarding BBY cargo, BAL lacks sufficient knowledge to educate a corporate representative, let alone appoint one to testify. See Liu Decl., ¶ 13 (“Any attempt by BAL to describe ‘any issues affecting the flow of containers’ would necessitate speculation and multiple pages of information”). Federal courts have addressed this issue, and affirm that BAL has no duty to appoint a representative here: “**If the entity receiving the deposition notice does not possess knowledge of the matters listed in the deposition notice, then its obligations under Rule 30(b)(6) obviously cease**, since the rule requires testimony only as to matters known or reasonably known to the organization.” *K.S. v. City of New York*, 21-CV-4649 (JSR) (SLC), 24-CV-3390 (JSR) (SLC), 2025 WL 307348, at *2 (S.D.N.Y. Jan. 27, 2025) (internal citations and quotation marks omitted) (emphasis added).

BBY argues that BAL’s analysis of detention and demurrage data BBY produced somehow opens the door to corporate testimony regarding the wide-spanning Topics 4-6. BBY is wrong. A corporate representative is not required to testify to “information readily available through document production.” *Blackrock Allocation Target Shares: Series S Portfolio v. Wells Fargo Bank, N.A.* No. 14-CV-09371(KPF)(SN), 2017 WL 9400671, at *2 (S.D.N.Y. Apr. 27,

² The Liu Declaration is on file with the Commission and available to the public at [www2.fmc.gov/readingroom/docs/25-01/\(29\) 25-01 Declaration of Liu Qingzhi.pdf](http://www2.fmc.gov/readingroom/docs/25-01/(29)25-01%20Declaration%20of%20Liu%20Qingzhi.pdf); pursuant to Commission Rule 206, BAL hereby incorporates it by reference.

2017). And here, BAL already produced its analysis of BBY's data (which made no references to the "flow of BBY's cargo," or to BAL's work with "intermediaries" regarding BBY's cargo) in advance of the deposition of its author, Mr. Parker Zhu. BBY received the full opportunity to question Mr. Zhu on topics related to this proceeding, including his analysis of BBY's detention and demurrage data. Cullinane Decl., ¶ 14. BBY is not entitled to another bite at this apple, nor is a corporate deposition an appropriate vehicle to do so. Accordingly, BBY's request to compel testimony regarding Topics 4-6 should be denied.

C. BBY MAY NOT MARSHAL THE EVIDENCE BY CORPORATE DEPOSITION (TOPIC 8)

Finally, BBY urges the Presiding Officer to compel BAL's corporate testimony regarding each of BBY's claims in this litigation and BAL's defenses thereto. Again, this topic is improper for a corporate deposition and should be denied. First, Topic 8, as drafted, seeks legal conclusions regarding the propriety of BBY's claims and BAL's defenses. Such testimony is inappropriate for a corporate deposition. *HSK v. Provident Life & Accident Ins. Co.*, 128 F. Supp. 3d 874, 882 n. 4 (D. Md. 2015). Moreover, courts repeatedly reject similarly-noticed topics as overbroad. For example, in *Wilmington Tr., Nat'l Ass'n as Tr. for Registered Holders of Bancorp Com. Mortg. 2019-CRE5 Tr., Com. Mortg. Pass-Through Certificates, Series 2019-CRE5 v. Samcom 48 (DE) LLC*, No. 22CV2720RPKRLM, 2022 WL 17977499, at *3 (E.D.N.Y. Dec. 28, 2022), the court addressed a near-identical request for corporate testimony as Topic 8. There, the discovering party sought corporate testimony regarding "[all] factual allegations, claims, and defenses" set forth in the defendant's answer and cross-claims. *Id.* at *3. The court struck the topic, stating, "this type of request is overly broad and encompasses every possible fact relevant to this litigation." *Id.* (internal citation omitted). Here, the case is no

different. The phrasing of Topic 8 suggests that BBY intends to go through each allegation and defense in the pleadings and seek testimony on the underlying circumstance from BAL. “That, in essence is asking the designee to marshal the evidence and is thus improper.” *DDK Hotels, LLC v. Williams-Sonoma, Inc.*, No. 19 CV 226 (ILG) (CLP), 2022 WL 2702378, at *14 (E.D.N.Y. Feb. 11, 2022). Such a request is particularly inappropriate where, as here, BAL would be asked for its views on BBY’s allegations in the complaint. *See Gov’t Emps. Ins. Co. v. Lenex Servs., Inc.*, No. 16 CV 6030 (LDH) (CLP), 2018 WL 1368024, at *3 (E.D.N.Y. Mar. 16, 2018) (holding improper defendant’s request for plaintiff’s testimony about “all factual matters” supporting defendants’ defenses because it “seems to require [plaintiff] to marshal the evidence that [it] believes constitutes or supports any potential defense to the allegations in the Complaint.”). Indeed, BBY is the party who drafted the Complaint and has the most fulsome knowledge of the basis for its allegations. BAL should not be compelled to serve as a vehicle for BBY to flesh out its claims or opine on their merits. Moreover, and contrary to the authority cited by BBY, multiple courts have rejected requests for corporate testimony similar to Topic 8, even when couched in requests for their “factual bases.” *E.g., DDK Hotels, LLC*, 2022 WL 2702378, at *14 (striking 30(b)(6) topic seeking “facts and circumstances” underlying amended complaint); *Conservation L. Found., Inc. v. Shell Oil Co.*, No. 3:21-CV-00933 (JAM), 2025 WL 842278, at *1 (D. Conn. Mar. 18, 2025) (striking 30(b)(6) topic seeking the “factual basis” underlying complaint). Accordingly, BBY has no right to corporate testimony regarding Topic 8 and its request to compel BAL’s testimony should be denied.

IV. CONCLUSION

For the aforementioned reasons, BAL respectfully requests that the Presiding Officer deny BBY’s Motion to Compel Further Corporate Testimony. **Without waiving the foregoing**

arguments, in the event the Presiding Officer is inclined to grant any part of the Motion, BAL respectfully requests that any further deposition be ordered by written questions only. As previously indicated, BAL's witnesses cannot be deposed in mainland China. Given the inconvenience of international travel (and BAL's witnesses already clearing their personal and professional calendars once for BBY), further deposition by written questions would strike a sufficient balance between any testimony the Presiding Officer deems appropriate and the time, effort, and expense BAL's witnesses would incur by additional travel for Hong Kong depositions. If the Presiding Officer does grant further depositions, BAL requests that BBY pay for any witness travel and accommodations needed from mainland China to Hong Kong.

DATED: January 2, 2026

THEODORA ORINGHER PC



BRYCE M. CULLINANE

CASB No. 307079

bcullinane@tocounsel.com

DAVID P. COLLINS

CASB No. 356864

SHAHED ABUALSAMEN

CASEB No. 345359

535 Anton Boulevard, Ninth Floor Costa Mesa,
California 92626-7109 Telephone: (714) 549-6200
Facsimile: (714) 549-6201

Attorneys for Respondent

BAL CONTAINER LINE CO., LIMITED

PROOF OF SERVICE

**20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED
Case No. 25-01**

STATE OF CALIFORNIA, COUNTY OF ORANGE

At the time of service, I was over 18 years of age and not a party to this action. I am employed in the County of Orange, State of California. My business address is 535 Anton Boulevard, Ninth Floor, Costa Mesa, CA 92626-7109.

On January 2, 2026, I served true copies of the following document(s) described as **RESPONDENT BAL CONTAINER LINES CO., LTD'S OPPOSITION TO COMPLAINANT'S MOTION TO COMPEL FURTHER CORPORATE TESTIMONY** on the interested parties in this action as follows:

SEE ATTACHED SERVICE LIST

BY E-MAIL OR ELECTRONIC TRANSMISSION: I caused a copy of the document(s) to be sent from e-mail address iosorio@tocounsel.com to the persons at the e-mail addresses listed in the Service List. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on January 2, 2026, at Costa Mesa, California.



Ileen Osorio

SERVICE LIST
20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED
Case No. 25-01

Karl C. Huth	<u>huth@huthreynolds.com</u>
Matthew J. Reynolds	<u>reynolds@huthreynolds.com</u>
J. Zachery Morris	<u>zmorris@huthreynolds.com</u>
Gregory A. Crapanzano II	<u>gcrapanzano@huthreynolds.com</u>
Mohini P.B. Rarrick	<u>mpriya@huthreynolds.com</u>
Heewan Noh	<u>hnoh@huthreynolds.com</u>